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Case Number: 22NWCV00320 Hearing Date: August 11, 2026 Dept: R

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THE
PACIFIC SOUTHWEST DISTRICT OF LUTHERAN CHURCH-MISSOURI SYNOD v. JENSEN

CASE
NO.: 22NWCV00320

HEARING: Tuesday, August 11, 2026, at 9:30 AM

Defendant/Cross-Defendant
PEACE LUTHERN CHURCH, INCORPATED, OF SOUTH GATE' CALIFORNIA and CHASTITY
CARVEL's Motion to Compel Arbitration and Stay Proceedings is DENIED.

Moving
Party to give notice.

Background

This
action for quiet title was filed by Plaintiff/Cross-Defendant
PACIFIC SOUTHWEST DISTRICT OF THE LUTHERAN CHURCH-MISSOURI SYNOD
("Plaintiff" or "PSWD") against Defendants IRENE JENSEN; CHASTITY CARVEL; CAROL
L. OLSON; KIDS FORUM PRESCHOOL AND DAYCARE; JANET TORRES; HECTOR TORRES;
ASAMBLEA APOSTOLICA; PEACE COMMUNITY CHURCH OF SOUTHGATE AND WEDDING CHAPEL;
PEACE LUTHERAN CHURCH, INCORPORATED, OF SOUTHGATE ("Defendant" or "PLC"); and
Does 1-50 on April 26, 2022. Plaintiff's action seeks to determine ownership
of the church where PLC's congregation gathers. PSWD contends that it now owns

the Subject Property pursuant to PLC's constitution because PLC's congregation no longer exists.

On January 14, 2024, the operative Second Amended Complaint ("SAC") was filed. The SAC alleges the following relevant facts: "This action seeks to quiet title to the property located at 4513 Tweedy Blvd., 4523 Tweedy Blvd., the adjoining wall between them…." (SAC ¶11.) Plaintiff contends that it now owns the Subject Property pursuant to Defendant's constitution because Defendant's congregation no longer exists. "Pursuant to C7.01 of the 1994 Constitution of Peace South Gage, all funds, property, and title thereto shall pass to Plaintiff when Peace South Gate ceases to exist. [¶] The congregation of Peace South Gate has ceased to exist within the meaning of C6.04 of the January 23, 1994 Constitution of Peace South Gate. [¶] Plaintiff was unaware of the status of Peace South Gate until December 20, 2021. Plaintiff attempted to learn the status of Peace South Gate and its congregation throughout multiple meetings, calls and letters with the purported leadership of the church. It was not until December 20, 2021, when representatives of Peace South Gate ejected representatives of Plaintiff from the property during scheduled meeting, that it was confirmed that there was no congregation at Peace South Gate and that people in possession of the premises were hostile to Plaintiff." (SAC ¶¶25-26a.) "By reason of the non-existence of defendant Peace South Gate's congregation, Plaintiff is the sole owner of the property located at 4513 Tweedy Blvd., 4523 Tweedy Blvd., the adjoining wall between them…." (SAC ¶27." "Plaintiff asserts that Plaintiff became the equitable holder of title to the subject property when Peace South Gate's congregation ceased to exist in or about 2015. [¶] The defendants named herein claim an illegal and inequitable right in the subject real property, which claims are adverse to Plaintiff's title and are a cloud of Plaintiff's title." (SAC ¶¶27a-28.)

The SAC asserts the following causes of action:

1. Quiet Title;

2.
Accounting;

3.
Common
Count – Money Had and Received;

4.
Trespass;

5.
Conspiracy;

6.
Breach
of Fiduciary Duty;

7.
Declaratory
Relief;

8.
Imposition
of Constructive Trust; and

9.
Ejectment

On
May 8, 2023, Defendant/Cross-Complainant PLC filed a Cross-Complaint. PLC alleges that "[a]t no given time has the Peace Lutheran Church; nor its congregants; provided any notice to the Pacific District, that Peace Lutheran Church has ceased to exist as an active congregation. And… Peace Lutheran Church has never filed for legal dissolution. The PLC congregation remains as an active, viable congregation in the community, and; in good standing with the state of California, as a duly registered nonprofit religious corporation." (XC ¶16.) "It is the property of Peace Lutheran Church, which the Plaintiff seeks to improperly; and fraudulently; take from PLC, through the District's quiet title action." (XC ¶17.)

PLC's XC
asserts the following causes of action:

1.
Declaratory
and Injunctive Relief;

2.
Unfair
Business Practices;

3.
Breach
of Contract;

4.
Unjust
Enrichment;

5.
Constructive
Trust;

6.
Fraud;

7.
Fraud
in the Inducement;

8.
Negligent
Misrepresentation;

9.
Breach
of Fiduciary Duty;

10.

Negligent
Infliction of Emotional Distress

On
October 25, 2023, Plaintiff PSWD's Special Motion to Strike was
GRANTED as to Defendant PLC's Second through Tenth causes of action.

On
July 14, 2026, PLC filed the instant motion to compel arbitration.

Existence of Arbitration
Agreement Between the Parties

The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (Engalia v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951.)

"The FAA…preempts any state rule discriminating on its face against arbitration… [and] also displaces any rule that covertly accomplishes the same objective by disfavoring contracts that (oh so coincidentally) have the defining features of arbitration agreements." (Kindred Nursing Centers Ltd. Partnership v. Clark (2017) 137 S.Ct. 1421, 1426.) "But a court may 'invalidate an arbitration agreement based on 'generally applicable contract defenses' without violating the FAA, so long as it does not apply a generally applicable defense 'in a fashion that disfavors arbitration.' [Citation Omitted.]" (Garcia v. KND Development 52, LLC (2020) 58 Cal.App.5th 736, 744.)

In support of the instant Motion, PLC submits an Agreement to arbitrate the disputes at issue in this action. (Ex. A, Synod Bylaws § 1.10.)

PLC's terms of service include an arbitration agreement which states, in relevant part:

““Therefore,
the Synod in the spirit of 1 Corinthians 6 calls upon all parties to a disagreement, accusation, controversy, or disciplinary action to rely exclusively and fully on the Synod’s system of reconciliation and conflict resolution. The use of the Synod’s conflict resolution procedures shall be the exclusive and final remedy for those who are in dispute.”

(Ex. A, Synod Bylaws § 1.10.)

The
Court finds PLC met its initial burden to produce a valid arbitration agreement (“Agreement”).

Scope
of the Agreement

PSWD argues that the Agreement does not cover its claims. The Court agrees. The Agreement contains an exception, which states, in relevant part:

…
While Christians are encouraged to seek to resolve all their disputes without resorting to secular courts, this chapter does not provide an exclusive remedy for the following matters, unless such matters involve theological, doctrinal, or ecclesiastical issues, including those arising under the divine call of a member of the Synod:

(a) Disputes
concerning property rights (e.g., real estate agreements, mortgages, fraud or embezzlement) …”

(Andres Decl., Ex. A § 1.10.3(a),
emphasis added.)

The instant case is a dispute concerning property rights. Further, the Court does not find that the instant case involves theological, doctrinal, or ecclesiastical issues. The Court need not review or apply religious doctrine in order to resolve the parties’ dispute over the Subject Property.

Indeed, the Court addressed this issue in ruling on PSWD’s motion for summary judgment. PSWD argued that the Court is unable to review the facts of this case and issue a determination as to if PLC's Congregation ceased to exist without deciding questions of religious doctrine. The Court expressly found otherwise, holding that it can look to see if there are active meetings, membership lists, financial activity, and communication records to determine if the Congregation ceased to exist.

The Court finds that this property dispute is excluded from PLC's Agreement and thus, the Motion is DENIED.

Waiver

Separately, the Court finds PLC waived its right to arbitration.

In Quach v. California Commerce Club, Inc. (2024) 16 Cal.5th 562 (Quach), the California Supreme Court outlined the requirements for waiver under California law: "To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. [Citations.] Under the clear and convincing evidence standard, the proponent of a fact must show that it is 'highly probable' the fact is true. [Citation.] The waiving party's knowledge of the right may be 'actual or constructive.' [Citation.] Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with the intent to enforce the contractual right as to lead a reasonable factfinder to conclude that the party had abandoned it. [Citation.] [¶] The waiver inquiry is exclusively focused on the waiving party's words or conduct; neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor that party's subjective evaluation of the waiving party's intent is relevant." (Quach at 584-585.) Waiver does not require "that the party opposing enforcement of the contractual right demonstrate prejudice or otherwise show harm resulting from the waiving party's conduct." (Id. at 585.)

PSWD argue that the facts of this case are analogous to the facts of Quach, wherein the Supreme Court found clear and convincing evidence of waiver wherein the "waiving party's" "words and conduct [were] markedly inconsistent with an intent to arbitrate” because it (1) knew of the right to arbitrate but “chose not to do so for” 15 months, (2) “affirmatively indicated its intent to pursue a jury trial rather than arbitration,” and (3) “actively engaged in discovery.” (Quach at 587.)

The facts of this case are as follows: On April 26, 2022, PSWD filed this action against PLC. On September 29, 2022, PLC sent a letter to PSWD requesting that PSWD participate in Binding Arbitration. PSWD refused. Rather than moving forward with a motion to compel arbitration thereafter, PLC answered PSWD’s Complaint. In doing so, PLC never indicated a judicial forum was the improper venue for this case. Indeed, PLC did not assert in its answer that PSWD should be compelled to arbitrate.

Instead, PLC engaged in discovery and furthered litigation by filing a Cross-Compliant. PLC also filed a motion for summary judgment. Critically, this case is nearly at trial. The Final Status Conference is set for August 14, 2026, and trial is scheduled for August 24, 2026.

Simply put, PLC chose to extensively litigate this action to near completion and then chose to file a motion to compel arbitration set for the eve of trial, four years after PSWD filed this action. PLC’s conduct is markedly inconsistent with an intent to arbitrate.

Conclusion

PLC’s Motion to Compel Arbitration is DENIED.

PLC’s Request for Judicial Notice is GRANTED. (Evid. Code section 452(h).)